

Jahara Begum v. Superintending Engineer, Raebareli

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 5 September 2024 · 2024:AHC-LKO:61141-DB · Writ-C No. 7640 of 2024 · **Disposed; para 6.14 application with 50% deposit for sympathetic restoration consideration.**

HEADNOTE

Disconnection for disputed dues of Rs 1,60,000 is to be pursued under para 6.14 of the Electricity Supply Code. The consumer must apply and complete the formalities within ten days; if 50% of the dues is deposited with the application, the authority shall consider restoration sympathetically. The writ was disposed of on that direction.

FACTUAL SUMMARY

Jahara Begum held a 3 KV connection, No. 4137064369, taken from the Raebareli licensee. She pleaded that she had been depositing her electricity bills regularly, yet the respondents disconnected the connection for dues of Rs 1,60,000. In Writ-C No. 7640 of 2024 she sought a mandamus directing opposite party no. 2 to decide her representation of 27 August 2024 and, until then, to restrain disconnection. Counsel for the petitioner and for the respondents were heard.

REUSABLE CONSTRUCTIONS

1. Where supply is disconnected for disputed electricity dues, the writ court treats para 6.14 of the Supply Code as the statutory remedy and leaves the dues to an application under that paragraph. ¶ 1-2
2. Sympathetic consideration of restoration is directed when the consumer, with the para 6.14 application, deposits 50% of the electricity dues; the writ does not itself order reconnection. ¶ 1-2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

para 6.14 remedy on disconnection for disputed dues

HOLDING

There being an apparent dispute over disconnection for electricity dues, the consumer's statutory remedy is para 6.14 of the Electricity Supply Code. The writ is disposed of by directing the consumer to file the application and complete the formalities within ten days; if 50% of the dues is deposited to the satisfaction of opposite party no. 2 with that application, that authority shall consider the request for restoration sympathetically. ¶ 1-2

PRINCIPLE TAGS

installment-payment-clause-6.14 The writ for restoration after disconnection for Rs 1,60,000 was disposed by sending the consumer to a para 6.14 application within ten days, with sympathetic consideration of restoration only if 50% of the dues is deposited with the application. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RS 1,60,000 DUES WERE PAYABLE AND WHETHER DISCONNECTION OF CONNECTION NO. 4137064369 WAS JUSTIFIED

Recorded only as an apparent dispute and left to the para 6.14 application. ¶ 1-2

NOT DECIDED — WHETHER THE ELECTRICITY CONNECTION MUST BE RESTORED

Opposite party no. 2 is to consider restoration sympathetically if the para 6.14 application is made with a 50% deposit.

¶ 1-2

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.